

NECROPOLITICS

THEORY IN FORMS

A series edited by Nancy Rose Hunt and Achille Mbembe

NECRO- POLITICS ACHILLE MBEMBE

Translated by

STEVEN CORCORAN

Duke University Press
Durham and London

2019

Politiques de l'inimitié © 2016 Editions La Découverte
English translation © 2019 Duke University Press
All rights reserved
Printed in the United States of America on acid-free paper ©
Cover designed by Matthew Tauch
Typeset in Arno Pro by Tseng Information Systems, Inc.

Library of Congress Cataloging-in-Publication Data

Names: Mbembe, Achille, [date] author. |
Corcoran, Steve, translator.
Title: Necropolitics / Achille Mbembe ;
translated by Steven Corcoran
Other titles: *Politiques de l'inimitié*. English
Description: Durham : Duke University Press, 2019. |
Series: Theory in forms | Includes bibliographical
references and index.
Identifiers: LCCN 2019009527 (print)
LCCN 2019016270 (ebook)
ISBN 9781478007227 (ebook)
ISBN 9781478005858 (hardcover : alk. paper)
ISBN 9781478006510 (pbk. : alk. paper)
Subjects: LCSH: Fanon, Frantz, 1925–1961. | Political
violence. | Decolonization—History—20th century. |
Democracy. | Postcolonialism.
Classification: LCC JC328.6 (ebook) | LCC JC328.6 .M3913
2019 (print) | DDC 320.01—dc23
LC record available at <https://lcn.loc.gov/2019009527>

CONTENTS

Acknowledgments vii

INTRODUCTION The Ordeal of the World 1

ONE Exit from Democracy 9

TWO The Society of Enmity 42

THREE Necropolitics 66

FOUR Viscerality 93

FIVE Fanon's Pharmacy 117

SIX This Stifling Noonday 156

CONCLUSION Ethics of the Passerby 184

Notes 191

Index 211

THREE

NECROPOLITICS

The ultimate expression of sovereignty largely resides in the power and capacity to dictate who is able to live and who must die.¹ To kill or to let live thus constitutes sovereignty's limits, its principal attributes. To be sovereign is to exert one's control over mortality and to define life as the deployment and manifestation of power.

This sums up what Michel Foucault meant by *biopower*: that domain of life over which power has asserted its control.² But under what practical conditions is the power to kill, to let live, or to expose to death exercised? Who is the subject of this right? What does the implementation of such a right tell us about the one who is thus put to death and about the relation of enmity that sets such a person against his murderer? Can the notion of biopower account for the contemporary ways in which the political takes as its primary and absolute objective the enemy's murder, doing so under the guise of war, resistance, or the war on terror? War is, after all, a means of achieving sovereignty as much as a way of exercising the right to kill. When politics is considered a form of war, the question needs to be asked about the place that is given to life, death, and the human body (in particular when it is wounded or slain). How are these aspects inscribed in the order of power?

The Work of Death

To answer these questions, this essay draws on the concept of biopower and explores this concept's relation to the notions of sovereignty (*imperium*) and the state of exception.³ I would like to examine briefly a num-

ber of empirical and philosophical questions that arise in this context. As is well known, the concept of the state of exception has been often discussed in relation to Nazism, totalitarianism, and the concentration/extermination camps. Various interpretations of the death camps in particular have taken them as the central metaphor for sovereign and destructive violence and as the ultimate sign of the absolute power of the negative. As Hannah Arendt puts it, "There are no parallels to the life in the concentration camps. Its horror can never be fully embraced by the imagination for the very reason that it stands outside of life and death."⁴ Because its inhabitants have been divested of political status and reduced to bare life, the camp is, for Giorgio Agamben, "the place in which the most absolute *conditio inhumana* ever to appear on Earth was realized."⁵ He adds that, in the political-juridical structure of the camp the state of exception ceases to be a temporal suspension of the state of law, acquiring a permanent spatial arrangement that remains continually outside the law's normal state.

This essay does not aim to debate the singularity of the extermination of the Jews or to hold it up by way of example.⁶ I set out from the idea that modernity is at the origin of multiple concepts of sovereignty, and thus also of the biopolitical. Disregarding this multiplicity, late modern political criticism has unfortunately privileged normative theories of democracy and made the concept of reason into one of the most important elements of both the project of modernity and the topos of sovereignty.⁷ From this perspective, the ultimate expression of sovereignty is the production of general norms by a body (the demos) comprising free and equal individuals. These individuals are posited as full subjects capable of self-understanding, self-consciousness, and self-representation. Politics, therefore, is doubly defined as a project of autonomy and as the reaching of agreement within a collective through communication and recognition. This, we are told, is what differentiates it from war.⁸

In other words, on the basis of a distinction between reason and unreason (passion, fantasy), late modern criticism has been able to articulate a certain idea of the political, the community, the subject—or, more fundamentally, of the good life, how to achieve it, and how to become, in the process, a fully moral agent. Within this paradigm, reason is the truth of the subject, and politics is the exercise of reason in the public sphere. The exercise of reason amounts to the exercise of freedom, a key element for individual autonomy. The romance of sovereignty, in this case, rests

on the belief that the subject is both master and controlling author of his own meaning. Sovereignty is therefore defined as a twofold process of *self-institution* and *self-limitation* (fixing one's own limits for oneself). Exercising sovereignty, in turn, is about society's capacity for self-creation with recourse to institutions inspired by specific social and imaginary significations.⁹

Several critiques have already been addressed to this strongly normative reading of the politics of sovereignty, so I will not rehearse them here.¹⁰ My concern is those figures of sovereignty whose central project is not the struggle for autonomy but *the generalized instrumentalization of human existence and the material destruction of human bodies and populations*. Such figures of sovereignty are far from a piece of prodigious insanity or the expression of a rupture between the impulses and interests of the body and those of the mind. Indeed, like the death camps, these figures constitute the *nomos* of the political space in which we continue to live. Furthermore, contemporary experiences of human destruction suggest that a reading of politics, sovereignty, and the subject may be developed that differs from the one bequeathed us by the philosophical discourse on modernity. Instead of considering reason as the subject's truth, we can look to other foundational categories that are less abstract and more tangible, such as life and death.

Hegel's discussion of the relation between death and "becoming subject" is significant here. His account of death centers on a twofold concept of negativity. First, the human negates nature (a negation that is exteriorized in the human's effort to reduce nature to human needs); second, the negated element is transformed through work and struggle. By transforming nature, the human being creates a world, but in the process, this human being is also exposed to his own negativity. In the Hegelian paradigm, human death is essentially voluntary. It is the result of the subject's consciously assuming risks. According to Hegel, through these risks the "animal" that constitutes the human subject's natural being is defeated.

In other words, the human being thus truly *becomes a subject*—that is, separated from the animal—in the struggle and work through which death (understood as the violence of negativity) is confronted. Through this confrontation with death, the human being is cast into the incessant movement of history. Becoming a subject therefore supposes upholding the work of death. To uphold the work of death, such is precisely how Hegel

defines the life of Spirit. The life of Spirit, he says, is not the life that is frightened of death and spares itself destruction, but the life that assumes death and lives with it. Spirit attains its truth only by finding itself in absolute dismemberment.¹¹ Politics is therefore a death that lives a human life. Such, too, is the definition of absolute knowledge and sovereignty: risking one's life as a whole.

Georges Bataille also offers critical insights into how death structures the concepts of sovereignty, the political, and the subject. Bataille displaces Hegel's conception of the linkages between death, sovereignty, and the subject in at least three ways. First, he interprets death and sovereignty as the paroxysm of exchange and superabundance—or, to use his own terminology: *excess*. For Bataille, life is defective only when death has taken it hostage. Life itself exists only in bursts and in exchange with death.¹² He argues that death is the putrefaction of life, the stench that is at once life's source and repulsive condition. So, although it destroys what was to be, obliterates what was supposed to continue being, and reduces to nothing the individual who takes it, death does not amount to the pure annihilation of being. Rather, it is essentially self-consciousness; moreover, it is the most luxurious form of life, that is, of effusion and exuberance: a power of proliferation. Even more radically, Bataille subtracts death from the horizon of meaning. In Hegel, by contrast, nothing is definitively lost in death; indeed, death for him holds great signification as a means to truth.

Second, Bataille firmly anchors death in the realm of *absolute expenditure* (the other characteristic of sovereignty), whereas Hegel tries to keep death within the economy of absolute knowledge and meaning. Life beyond utility, Bataille says, is the domain of sovereignty. This being the case, death is therefore the point at which destruction, suppression, and sacrifice constitute so irreversible and radical an expenditure—an expenditure without reserve—that they can no longer be determined as negativity. Death is therefore the very principle of excess—an *anti-economy*. Hence the metaphor of luxury and *the luxurious character of death*.

Third, Bataille establishes a correlation among death, sovereignty, and sexuality. Sexuality, for him, is inextricably linked to violence and to the dissolution of the body's and the Self's boundaries by way of orgiastic and excremental impulses. As such, sexuality concerns two major forms of polarized human impulses—excretion and appropriation—as well as the regime of the taboos surrounding them.¹³ The truth of sex, and its deadly

attributes, resides in the experience of loss of the boundaries separating reality, events, and fantasized objects.

For Bataille, then, sovereignty takes many forms. But it ultimately takes that of a refusal to accept the limits that the fear of death would have the subject respect. The sovereign world, Bataille argues, “is the world in which the limit of death is done away with. Death is present in it, its presence defines that world of violence, but while death is present it is always there only to be negated, never for anything but that. The sovereign,” he concludes, “is he who is, as if death were not. . . . He has no more regard for the limits of identity than he does for limits of death, or rather these limits are the same; he is the transgression of all such limits.” Since the natural domain of prohibitions includes death, among others (e.g., sexuality, filth, and excrement), sovereignty requires “the strength to violate the prohibition against killing, although it’s true this will be under the conditions that customs define.” And contrary to the subordination ever rooted in necessity and the alleged need to avoid death, sovereignty definitely calls for the risk of death.¹⁴

By conceiving sovereignty as a violating of prohibitions, Bataille reopens the question of the limits of the political. The political, in this case, is not the forward dialectical movement of reason. It can be traced only as a spiral transgression, as that difference that disorients the very idea of the limit. More specifically, it is the difference put into play by the violation of a taboo.¹⁵

The Relation of Enmity

After this presentation of politics as the work of death, I now turn to sovereignty, defined as the right to kill. For the purposes of my demonstration, I relate Foucault’s notion of biopower to two other concepts: the state of exception and the state of siege.¹⁶ I examine the trajectories by which the state of exception and the relation of enmity have become the normative basis of the right to kill. In such instances, power (which is not necessarily state power) continuously refers and appeals to the exception, emergency, and a fictionalized notion of the enemy. It also labors to produce these same exceptions, emergencies, and fictionalized enemies. Thus the question becomes: What is the relationship between politics and death in those systems that operate only through a state of emergency?

Biopower, in Foucault's work, appears to function by dividing people into those who must live and those who must die. As it proceeds on the basis of a split between the living and the dead, such power defines itself in relation to the biological field—of which it takes control and in which it invests itself. This control presupposes a distribution of human species into groups, a subdivision of the population into subgroups, and the establishment of a biological caesura between these subgroups. Foucault refers to this using the seemingly familiar term "racism."¹⁷

That *race* (or indeed *racism*) figures so prominently in the calculus of biopower is easy to understand. After all, racial thinking more than class thinking (where class is an operator defining history as an economic struggle between classes) has been the ever-present shadow hovering over Western political thought and practice, especially when the point was to contrive the inhumanity of foreign peoples and the sort of domination to be exercised over them. Referring to both this ever-presence and the phantom-like world of race in general, Arendt locates their roots in the shattering experience of otherness. She suggests that the politics of race is ultimately linked to a politics of death.¹⁸ Indeed, in Foucault's terms, racism is above all a technology aimed at permitting the exercise of biopower, "that old sovereign right to kill." In the economy of biopower, the function of racism is to regulate the distribution of death and to make possible the state's murderous functions. It is, he says, "the condition for the acceptability of putting to death."¹⁹

Foucault clearly posits that the sovereign right of the sword and the mechanisms of biopower are part of the functioning of all modern states;²⁰ indeed, they can be seen as constitutive elements of state power in modernity. According to him, the Nazi state was the most complete example of a state exercising the right to kill. This state, he claims, made the management, protection, and cultivation of life coextensive with the sovereign right to kill. He argues that, through a biological extrapolation of the theme of the political enemy, the Nazi state's organizing of war against its adversaries and simultaneous exposing of its own citizens to war opened the way for a formidable consolidation of the right to kill, culminating in the project of the "final solution." In doing so, it became the archetype of a formation of power combining the characteristics of the racist state, the murderous state, and the suicidal state.

It has been argued that the Nazi state is unique in its conflation of war

and politics (and racism, homicide, and suicide), to the point of rendering them indistinguishable from one another. The perception of the existence of the Other as an attempt on my life, as a mortal threat or absolute danger whose biophysical elimination would strengthen my life potential and security—this is, I maintain, one of the many imaginary dimensions characteristic of sovereignty in both early and late modernity. Recognition of this perception to a large extent underpins most traditional critiques of modernity, whether they are dealing with nihilism and its proclamation of the will for power as the essence of the being, with reification understood as the *becoming-object* of the human being, or the subordination of everything to impersonal logic and to the reign of calculability and instrumental rationality.²¹ Indeed, from an anthropological perspective, what these critiques implicitly contest is a definition of politics as the warlike relation *par excellence*. They also challenge the idea that the calculus of life perforce passes through the death of the Other, or that sovereignty consists of the will and the capacity to kill so as to live.

Taking a historical perspective, many analysts have argued that, on the one hand, the material premises of the Nazi extermination are also found in colonial imperialism and, on the other, in the serialization of technical mechanisms for putting people to death—mechanisms developed between the Industrial Revolution and the First World War. According to Enzo Traverso, the gas chambers and ovens were the culmination of a long process of dehumanizing and industrializing death, one of the original features of which was to integrate instrumental rationality with the productive and administrative rationality of the modern Western world (the factory, the bureaucracy, the prison, the army). After mechanization, serialized execution was transformed into a purely technical, impersonal, silent, and rapid procedure. In part, this development was aided by racist stereotypes and the flourishing of a class-based racism that, by translating the social conflicts of the industrial world in racial terms, ended up comparing the working classes and “stateless people” of the industrial world to the “savages” of the colonial world.²²

In reality, the links between modernity and terror spring from multiple sources. Some are to be found in the political practices of the ancien régime. From this perspective, the tension between the public’s passion for blood and notions of justice and revenge is critical. In *Discipline and Punish*, Foucault describes how, much to the crowd’s satisfaction, the

execution of the would-be regicide Damiens lasted for hours.²³ The long procession of the condemned through the streets prior to execution, the parade of body parts—a ritual that became a standard feature of popular violence—and the display of a severed head mounted on a pike. In France, the advent of the guillotine marks a new phase in the “democratization” of the means of disposing of the enemies of state. Indeed, this form of execution that had once been the prerogative of the nobility is extended to all citizens. In a context in which decapitation is viewed as less demeaning than hanging, innovations in the technologies of murder aimed not only at “civilizing” the ways of killing. They also aimed at disposing of a large number of victims in a relatively short span of time. At the same time, a new cultural sensibility emerges in which killing the enemy of the state is an extension of play. More intimate, lurid, and leisurely forms of cruelty begin to take shape.

But nowhere is the conflation of reason and terror so manifest as during the French Revolution.²⁴ During the French Revolution, terror is construed as an almost necessary part of politics. An absolute transparency is claimed to exist between the state and the people. As a political category, “the people” is gradually displaced from concrete reality to rhetorical figure. As David Bates has shown, the theorists of terror believed it possible to distinguish between authentic expressions of sovereignty and the actions of the enemy. They also believed it possible to distinguish, in the political sphere, between the citizen’s “error” and the counterrevolutionary’s “crime.” Terror thus became a way of marking aberration in the body politic, and politics came to be read both as the mobile force of reason and as an errant attempt to create a space where “error” would only be reduced and the truth enhanced and the enemy dispatched.²⁵

Finally, terror is not linked solely to the utopian belief in the unfettered power of human reason. It is also clearly related to various narratives of mastery and emancipation, most of which are underpinned by Enlightenment understandings of truth and error, the “real” and the symbolic. Marx, for example, conflates labor (the endless cycle of production and consumption required to maintain human life) with work (the creation of lasting artifacts that add to the world of things). Labor is viewed as the vehicle for humankind’s historical self-creation.

The historical self-creation is itself a life-and-death conflict over what paths might lead to the truth of history: overcoming capitalism and the

commodity form, and the contradictions associated with each of them. According to Marx, with the advent of communism and the abolition of exchange relations, things will appear as they really are; the “real” will present itself as it actually is, and the distinction between subject and object, or being and consciousness, will be transcended.²⁶ But by making human emancipation dependent upon the abolition of commodity production, Marx blurs the all-important divisions between the human-made realm of freedom, the nature-determined realm of necessity, and the contingent in history.

The commitment to the abolition of commodity production and the dream of direct and unmediated access to the “real” make these processes—the fulfillment of the so-called logic of history and the fabrication of humankind—almost necessarily violent processes. As Stephen Louw has shown, the central tenets of classical Marxism leave no choice but to “try to introduce communism by administrative fiat, which, in practice, means that social relations must be decommmodified forcefully.”²⁷ Historically, these attempts have taken such forms as labor militarization, the collapse of the distinction between state and society, and revolutionary terror.²⁸ It may be argued that they have aimed at eradicating the basic human condition of plurality. Indeed, the overcoming of class divisions, the withering away of the state, the flowering of a truly general will—all presuppose a view of human plurality as the chief obstacle to the eventual realization of a predetermined telos of history. In other words, the subject of Marxian modernity is, fundamentally, a subject who is intent on proving his or her sovereignty by staging a fight to the death. Similar to Hegel, the narrative of mastery and emancipation here is clearly linked to a narrative of truth and death. Terror and killing become the means of realizing the already known telos of history.

Any historical account of the rise of modern terror needs to address slavery, which could be considered one of the first instances of biopolitical experimentation. In many respects, the very structure of the plantation system and its consequences express the emblematic and paradoxical figure of the state of exception.²⁹ This figure is paradoxical here for two reasons. First, in the context of the plantation, the slave’s humanity appears as the perfect figure of a shadow. Indeed, the slave condition results from a triple loss: loss of a “home,” loss of rights over one’s body, and loss

of political status. This triple loss is identical with absolute domination, natal alienation, and social death (expulsion from humanity altogether). To be sure, as a political-juridical structure, the plantation is a space where the slave belongs to a master. It is not a community if only because a community, by definition, implies the exercise of the power of speech and thought. As Paul Gilroy says, "The extreme patterns of communication defined by the institution of plantation slavery dictate that we recognize the anti-discursive and extralinguistic ramifications of power at work in shaping communicative acts. There may, after all, be no reciprocity on the plantation outside of the possibilities of rebellion and suicide, flight and silent mourning, and there is certainly no grammatical unity of speech to mediate communicative reason. In many respects, the plantation inhabitants live non-synchronously."³⁰ As an instrument of labor, the slave has a price. As a property, the slave has a value. The slave's labor is needed and used, so he is therefore kept alive, but in a *state of injury*, in a phantom-like world of horrors and intense cruelty and profanity. The violent tenor of the slave's life is manifested through the overseer's disposition to behave in a cruel and intemperate manner, as well as in the spectacle of pain inflicted on the slave's body.³¹ Violence, here, becomes an element in manners, like whipping, or taking the slave's life itself: an act of caprice and pure destruction aimed at instilling terror.³² Slave life, in many ways, is a form of death-in-life. As Susan Buck-Morss has suggested, the slave condition produces a contradiction between the freedom of property and freedom of the person. An unequal relationship is established along with the inequality of the power over life. This power over the life of another takes the form of commerce: a person's humanity is dissolved to the point that the slave's life can be said to be possessed by the master.³³ Because the slave's life is like a "thing," possessed by another person, slave existence appears as the perfect figure of a shadow.

In spite of this terror and symbolic sealing off, the slave maintains alternative perspectives toward time, work, and self. This is the second paradoxical element of the plantation world as a manifestation of the state of exception. The slave, treated as no longer existing except as a mere tool and instrument of production, is nevertheless able to introduce almost any object, instrument, language, or gesture into a performance, and then stylize it. Breaking with uprootedness and the pure world of things of which he is

a mere fragment, the slave is able to demonstrate the protean capabilities of the human bond through music and the body itself that was supposedly possessed by another.³⁴

If, in the plantation system, the relations between life and death, the politics of cruelty and the symbolism of profanity, get blurred, what comes into being in the colony and under apartheid is a peculiar formation of terror, to which I now turn.³⁵ The most original feature of this terror formation is its concatenation of biopower, the state of exception, and the state of siege. Race is, once again, crucial to this concatenation.³⁶ In most instances, racial selection, prohibiting mixed marriages, forced sterilization, and indeed exterminating vanquished peoples found their first testing ground in the colonial world. The first syntheses arise here between massacre and bureaucracy — that incarnation of Western rationality.³⁷ Arendt develops the thesis that there is a link between national socialism and traditional imperialism. According to her, the colonial conquest revealed a hitherto unseen potential for violence. World War II shapes up as an extension of methods previously reserved for the “savages” to the “civilized” peoples of Europe.

That the technologies which produced Nazism originated in the plantation or in the colony, or that — Foucault’s thesis — Nazism and Stalinism actually only amplified a series of already extant mechanisms of Western European social and political formations (subjugation of the body, health regulations, social Darwinism, eugenics, medicolegal theories on heredity, degeneration, and race) is, in the end, irrelevant. Yet one fact remains: in modern philosophical thought and in the imaginary and practice of European politics, the colony represents a site in which sovereignty fundamentally consists in exercising a power outside the law (*ab legibus solutus*) and in which “peace” is more likely to assume the face of “endless war.”

Indeed, this view is in keeping with the definition of sovereignty that Carl Schmitt forged at the beginning of the twentieth century, one that sees it as the power to decide on the state of exception. To assess properly the colony’s efficacy as a formation of terror, we need to take a detour through the European imaginary itself as it relates to the critical issue of the domestication of war and the creation of a European juridical order (*Jus publicum Europaeum*). Two key principles lay at the basis of this order. The first postulates the juridical equality of all states, an equality that was notably applied to *the right to wage war* (the taking of life). The right to

wage war meant two things. On the one hand, that killing or concluding peace was recognized as one of the preeminent functions of any state. This function went hand in hand with the recognition that no state could make claims to rule outside of its borders. But conversely, the state could recognize no authority above it within its own borders. On the other hand, the state, for its part, undertook to “civilize” the ways of killing and to attribute rational objectives to the very act of killing.

The second principle was related to the territorialization of the sovereign state, that is, the determination of its borders in the context of a newly imposed global order. In this order *Jus publicum* rapidly assumed the form of a distinction between, on the one hand, those parts of the globe available for colonial appropriation and, on the other, Europe (where the *Jus publicum* was to hold sway).³⁸ This distinction, as we will see, is crucial in terms of assessing the colony’s efficacy as a structure of terror. Under *Jus publicum*, a legitimate war is largely a war conducted by one state against another or, more precisely, a war between “civilized” states. The state’s centrality in the calculus of war derives from the state’s being the model of political unity, a principle of rational organization, the embodiment of the idea of the universal, and a moral sign.

In the same context, colonies are similar to frontiers. Inhabited by “savages,” colonies are not organized as a state form and do not create a human world. Their armies do not form a distinct entity, and their wars are not wars between regular armies. They do not imply the mobilization of sovereign subjects (citizens) who respect each other as enemies. They do not establish a distinction between combatants and noncombatants, or again between an “enemy” and a “criminal.”³⁹ Concluding peace with them is thus impossible. In sum, colonies are zones in which war and disorder, internal and external figures of the political, stand side by side or alternate with each other. The colony is thus the site par excellence where controls and guarantees of judicial order can be suspended—the zone where the violence of the state of exception is deemed to operate in the service of “civilization.”

That colonies could be ruled in absolute lawlessness was due to the racial denial of any common bond between the conqueror and the native. In the conqueror’s eyes, *savage life* is just another form of *animal life*, a horrifying experience, something alien beyond imagination or comprehension. In fact, according to Arendt, what makes savages different from other

human beings is less the color of their skin than the fear that they behave like a part of nature, that they treat nature as their undisputed master. For nature thereby remains, in all its majesty, an overwhelming reality compared to which they appear to be phantoms, unreal, and ghostlike. Savages are, as it were, “natural” human beings who lack a specifically human character, a specifically human reality, “so that when European men massacred them they somehow were not aware that they had committed murder.”⁴⁰

For all of the above reasons, the sovereign right to kill is not subject to any rule in the colonies. In the colonies, the sovereign might kill at any time or in any manner. Colonial warfare is not subject to legal and institutional rules. It is not a legally codified activity. Instead, colonial terror constantly intertwines with colonially generated fantasies of wilderness, and death and fictions, workings to create an effect of the real.⁴¹ Peace is not necessarily the natural outcome of a colonial war. In fact, the distinction between war and peace does not hold. Colonial wars are conceived as the expression of an absolute hostility setting the conqueror against an absolute enemy.⁴² All the manifestations of war and hostility that a European legal imaginary relegated to the margins find a place to reemerge in the colonies. Here, the fiction of a distinction between war’s “ends” and its “means” collapses, as does the fiction according to which war is a rule-governed contest, as opposed to pure slaughter without risk or instrumental justification. It becomes futile, therefore, to attempt to resolve one of the intractable paradoxes of war that Alexandre Kojève captured so well in his reinterpretation of Hegel’s *Phenomenology of the Spirit*: its simultaneous idealism and apparent inhumanity.⁴³

Necropower and Occupation in Late Modernity

The ideas developed above, it might be thought, relate to a distant past. In the past, indeed, imperial wars had the objective of destroying local powers, installing troops, and instituting new models of military control over civil populations. A group of local auxiliaries could assist in the management of conquered territories annexed to the empire. Within the empire, the status given to the defeated populations enshrined their despoilment. In these configurations, violence constituted the original form of the right, and exception provided the structure of sovereignty. Each stage of

imperialism also involves certain key technologies (the gunboat, quinine, steamship lines, submarine telegraph cables, colonial railroads).⁴⁴

Colonial occupation itself consisted in seizing, delimiting, and asserting control over a geographical area — of writing a new set of social and spatial relations on the ground. The writing of new spatial relations (territorialization) ultimately amounted to the production of boundaries and hierarchies, zones and enclaves; the subversion of existing property arrangements; the differential classification of people; resource extraction; and, finally, the manufacturing of a large reservoir of cultural imaginaries. These imaginaries gave meaning to the establishing of different rights for different categories of people, rights with different goals but existing within the same space — in short, the exercise of sovereignty. Space was thus the raw material of sovereignty and of the violence it bears within it. Sovereignty meant occupation, and occupation meant relegating the colonized to a third zone between subjecthood and objecthood.

Such was the case of the apartheid regime in South Africa. Here, the *township* was the structural form and the *homelands* became the reserves (rural bases) whereby the flow of migrant labor could be regulated and African urbanization held in check.⁴⁵ As Belinda Bozzoli has shown, the township in particular was a place where “severe oppression and poverty were experienced on a racial and class basis.”⁴⁶ As a sociopolitical, cultural, and economic structure, the township was a peculiar spatial institution scientifically planned for the purposes of control.⁴⁷ The functioning of the homelands and townships entailed severe restrictions for blacks on producing for markets in white areas, the terminating of landownership by blacks except in reserved areas, the illegalization of black residence on white farms (except as servants in the employ of whites), the control of urban influx, and, later, the denial of citizenship to Africans.⁴⁸

Frantz Fanon describes the spatialization of colonial occupation in vivid terms. First and foremost, he argues, colonial occupation entails a division of space into compartments. It involves the setting of boundaries and internal frontiers epitomized by barracks and police stations; it is regulated by the language of pure force, immediate presence, and frequent and direct action; and it is premised on the principle of reciprocal exclusivity.⁴⁹ But more important, this is how necropower operates: “The town belonging to the colonized people . . . is a place of ill fame, peopled by men of evil

repute. They are born there, it matters little where or how; they die there, it matters not where, nor how. It is a world without spaciousness; men live there on top of each other. The native town is a hungry town, starved of bread, of meat, of shoes, of coal, of light. The native town is a crouching village, a town on its knees.”⁵⁰ In this case, sovereignty means the capacity to define who matters and who does not, who is *disposable* and who is not.

Late modern colonial occupation differs in many ways from early modern occupation, particularly in its combining of the disciplinary, the biopolitical, and the necropolitical. The most accomplished form of necropower is the contemporary colonial occupation of Palestine. Here, the colonial state derives its fundamental claim of sovereignty and legitimacy from the authority of its own particular narrative of history and identity. This narrative is itself underpinned by the idea that the state has a divine right to exist, a narrative that competes with another for the same sacred space. Because the two narratives are incompatible and the two populations are inextricably intertwined, a demarcation of the territory on the basis of pure identity is quasi-impossible. Violence and sovereignty, in this case, claim a divine foundation: peoplehood itself is forged by the worship of one deity, and national identity is imagined as an identity against an Other, against other deities.⁵¹ History, geography, cartography, and archaeology are supposed to back these claims, thereby closely binding identity and topography. As a consequence, colonial violence and occupation are profoundly underwritten by the sacred terror of truth and exclusivity (mass expulsions, resettlement of “stateless” people in refugee camps, settlement of new colonies). Underneath the terror of the sacred there are missing bones, which are constantly being unearthed; the permanent remembrance of torn bodies, hewn in a thousand pieces and never self-same; the limits, or better, the impossibility of representing for oneself an “original crime,” an unspeakable death: the terror of the Holocaust.⁵²

To return to Fanon’s spatial reading of colonial occupation, the late modern colonial occupation in Gaza and the West Bank presents three major characteristics concerning the working of the specific structure of terror that I have called necropower. The first involves the dynamics of territorial fragmentation—the sealing off and expansion of settlements. This process has a twofold objective: to render all movement impossible and to implement forms of separation on the model of an apartheid state. The occupied territories have thus been divided into a web of intricate internal

borders and various isolated cells. According to Eyal Weizman, by departing from a planar division of territory and embracing a principle of creation of three-dimensional boundaries within a territory, dispersal and segmentation clearly redefine the relationship between sovereignty and space.⁵³

These actions, for Weizman, constitute “the politics of verticality.” The resultant form of sovereignty might be qualified as “vertical sovereignty.” Under a regime of vertical sovereignty, colonial occupation operates through schemes of over- and underpasses, a separation of airspace from the ground. The ground itself is divided between its crust and the subsoil. Colonial occupation is also dictated by the very nature of the terrain and its topographical variations (hilltops and valleys, mountains, and bodies of water). Thus, high ground offers strategic advantages not found in the valleys (better vision and self-protection, a panoptic fortification enabling the gaze to be directed in multiple directions). As Weizman puts it, “Settlements could be seen as urban optical devices for surveillance and the exercise of power.” Under the conditions of late modern colonial occupation, surveillance is oriented both inwardly and outwardly, the eye acting as weapon, and vice versa. Instead of the conclusive division between two nations across a boundary line, Weizman claims, “the organization of the West Bank’s particular terrain has created multiple separations, provisional boundaries, which relate to each other through surveillance and control.” Under these circumstances, colonial occupation not only amounts to control, surveillance, and separation but is also synonymous with isolation. It is a *splintering occupation* in keeping with the splintering urbanism characteristic of late modernity (suburban enclaves or gated communities).⁵⁴

From an infrastructural point of view, a splintering form of colonial occupation is characterized by a network of fast bypass roads, bridges, and tunnels that weave over and under one another in an attempt to maintain the Fanonian “principle of reciprocal exclusivity.” According to Weizman, “the bypass roads attempt to separate Israeli traffic networks from Palestinian ones, preferably without allowing them ever to cross. They therefore emphasize the overlapping of two separate geographies that inhabit the same landscape. Where the networks do cross, a makeshift separation is created. Most often, small dust roads are dug out to allow Palestinians to cross under the fast, wide highways on which Israeli vans and military vehicles rush between settlements.”⁵⁵

Under these conditions of vertical sovereignty and splintering colonial

occupation, communities get separated along a y-axis. The sites of violence duly proliferate. Battlegrounds are not located solely at the Earth's surface. Underground and airspace are transformed into conflict zones as well. No continuity exists between the ground and the sky. Even the airspace boundaries are divided between lower and upper layers. Everywhere, the symbolics of the *top* (of who is on top) is reiterated. Occupation of the skies therefore acquires a critical importance, since most of the policing is done from the air. Various other technologies are mobilized to this effect: sensors aboard unmanned air vehicles, aerial reconnaissance jets, early warning Hawkeye planes, assault helicopters, an Earth-observation satellite, techniques of "hologrammatization." Killing becomes precision-targeted.

Such precision is combined with the tactics of medieval siege warfare adapted to the networked sprawl of urban refugee camps. An orchestrated and systematic sabotage of the enemy's societal and urban infrastructure network complements the appropriation of land, water, and airspace resources. Critical to these techniques of disabling the enemy is *bulldozing*: demolishing houses and cities, uprooting olive trees, riddling water tanks with bullets, bombing and jamming electronic communications, digging up roads, destroying electricity transformers, tearing up airport runways, disabling television and radio transmitters, smashing computers, ransacking cultural and politicobureaucratic symbols of the proto-Palestinian state, and looting medical equipment—in other words, *infrastructural warfare*.⁵⁶ While Apache helicopter gunships are used to police the air and kill from overhead, armored bulldozers (the Caterpillar D-9) are used on the ground as weapons of war and intimidation. In contrast to early modern colonial occupation, both weapons establish the superiority of the high-tech tools of late modern terror.⁵⁷

As the Palestinian case illustrates, late modern colonial occupation is a concatenation of multiple powers: disciplinary, biopolitical, and necropolitical. The combination of the three grants the colonial power absolute domination over the inhabitants of the occupied territory. The *state of siege* is itself a military institution. It allows for a modality of killing that does not distinguish between the external and the internal enemy. Entire populations are the target of the sovereign. Besieged villages and towns are sealed off and isolated from the world. Daily life is militarized. Local

military commanders have the discretionary freedom to decide whom to shoot and when. Movement between the territorial cells requires formal permits. Local civil institutions are systematically destroyed. The besieged population is deprived of their means of income. Invisible killing is added to outright executions.

War Machines and Heteronomy

After having examined the workings of necropower under the conditions of late modern colonial occupation, I would like now to turn to contemporary wars. Contemporary warfare belongs to a new moment and can hardly be understood through earlier theories of “contractual violence” or typologies of “just” and “unjust” wars, or even Carl von Clausewitz’s instrumentalism.⁵⁸ According to Zygmunt Bauman, the wars of the globalization era do not include the conquest, acquisition, and takeover of a territory among their objectives. They are, ideally, hit-and-run affairs.

The growing gap between high-tech and low-tech means of war was never as evident as it was in the Gulf War and in the Kosovo campaign. In each case, the doctrine of “overwhelming or decisive force” was implemented to full effect, thanks to a military-technological revolution that has intensified the capacity for destruction in unprecedented ways.⁵⁹ Aerial warfare as it relates to altitude, ordnance, visibility, and intelligence is a case in point. During the Gulf War, the combined use of smart bombs and bombs coated with depleted uranium, high-tech standoff weapons, electronic sensors, laser-guided missiles, cluster and asphyxiation bombs, stealth capabilities, unmanned aerial vehicles, and cyber intelligence quickly crippled the capabilities of the enemy.

In Kosovo, the “degrading” of Serbian capabilities took the form of an infrastructural war that targeted and destroyed bridges, railroads, highways, communications networks, oil storage depots, heating plants, power stations, and water treatment facilities. As can be surmised, the execution of such a military strategy, especially when combined with the imposition of sanctions, results in shutting down the enemy’s life-support system. The enduring damage to civilian life is particularly telling. For example, during the Kosovo campaign, the destruction of the Pancevo petrochemical complex on Belgrade’s outskirts “left the vicinity so toxic with vinyl chlo-

ride, ammonia, mercury, naphtha and dioxin that pregnant women were directed to seek abortions, and all local women were advised to avoid pregnancy for two years.”⁶⁰

Globalization-era warfare therefore aims to force the enemy into submission regardless of the military actions’ immediate consequences, side effects, or “collateral damage.” In this sense, contemporary wars recall more the warfare strategy of the nomad than that of sedentary nations, or of modernity’s “conquer-and-annex” wars for territory. In Bauman’s words, “They rest their superiority over the settled population on the speed of their own movement; their own ability to descend from nowhere without notice and vanish again without warning, their ability to travel light and not to bother with the kind of belongings which confine the mobility and the maneuvering potential of the sedentary people.”⁶¹

This new moment is one of global mobility. An important feature of the age of global mobility is that states no longer have the monopoly on military operations and exercising the right to kill and that the “regular army” is no longer the sole means of carrying out these functions. The claim to ultimate or final authority in a particular political space is not easily made. Instead, a patchwork of overlapping and incomplete rights to rule emerges, rights that are inextricably superimposed and entangled, wherein different *de facto* juridical instances are geographically interwoven and plural allegiances, asymmetrical suzerainties, and enclaves abound.⁶² In this heteronymous organization of territorial rights and claims, there can be little sense in insisting on clearly demarcated boundaries between “internal” and “external” political realms.

Take Africa, where the political economy of statehood dramatically changed over the last quarter of the twentieth century. Many African states can no longer claim to hold a monopoly on violence or on the means of coercion within their territory. Nor can they claim a monopoly on territorial boundaries. Coercion itself has become a market commodity. Military manpower is bought and sold on a market in which the identity of suppliers and purchasers means almost nothing. Urban militias, private armies, armies of regional lords, private security firms, and state armies all claim the right to exercise violence or to kill. Neighboring states or rebel movements lease armies to poor states. Nonstate deployers of violence supply two critical, coercive resources: labor and minerals. Increasingly,

the vast majority of armies are composed of citizen soldiers, child soldiers, mercenaries, and privateers.⁶³

What are thus emerging alongside armies we might, following Deleuze and Guattari, refer to as *war machines*.⁶⁴ War machines are made up of segments of armed men that split up or merge with one another, depending on the tasks to be carried out and the circumstances involved. Polymorphous and diffuse organizations, war machines are characterized by their capacity for metamorphosis. Their relation to space is mobile. They sometimes enjoy complex links with state forms (from autonomy to incorporation). The state may, of its own doing, transform itself into a war machine. It may, moreover, appropriate for itself an existing war machine or help to create one. War machines function by borrowing from regular armies while incorporating new elements adapted to the principle of segmentation and deterritorialization. Regular armies, in turn, may readily appropriate some of the characteristics of war machines.

A war machine combines a plurality of functions. It has the features of a political organization and a mercantile company. It operates through capture and depredations and can even coin its own money. To fuel the extraction and export of natural resources located in the territories they control, war machines forge direct connections with transnational networks. War machines emerged in Africa during the last quarter of the twentieth century in direct relation to the erosion of the postcolonial state's capacity to build the economic underpinnings of political authority and order. This capacity involves raising revenue and commanding and regulating access to natural resources within a well-defined territory. In the mid-1970s, as the state's ability to maintain this capacity began to erode, a clear-cut link emerged between monetary instability and spatial fragmentation. In the 1980s, the brutal experience of currency depreciation became more commonplace as several countries endured cycles of hyperinflation (which included such stunts as the sudden replacement of a currency). During the last decades of the twentieth century, monetary circulation influenced state and society in at least two different ways.

First, we saw a general drying up of liquidities and their gradual concentration within specific channels, access to which is subject to increasingly draconian conditions. As a result, the number of individuals endowed with the material means to control dependents through the creation of

debts has abruptly decreased. Historically, capturing and fixing dependents through a debt mechanism was a central aspect of both the production of people and the constitution of a political bond.⁶⁵ Such bonds were crucial in determining the value of persons and gauging their utility. When their value and utility were not proven, they could be disposed of as slaves, pawns, or clients.

Second, the controlled inflow and fixing of money movements around zones in which specific resources are extracted has made possible the formation of *enclave economies*, shifting the old calculus between people and things. The concentration of activities connected with the extraction of valuable resources around these enclaves has, in return, turned the enclaves into privileged spaces of war and death. War itself is fed by the increased sales of the products extracted.⁶⁶ New linkages have therefore emerged between making war, war machines, and resource extraction.⁶⁷ War machines are involved in constituting highly transnational local or regional economies. In most places, the collapse of formal political institutions under the strain of violence tends to lead to the formation of militia economies. War machines (in this case militias or rebel movements) rapidly become highly organized mechanisms of predation, taxing the territories and the populations they occupy, and drawing on a range of transnational networks and diasporas that provide both material and financial support.

Correlated to the new geography of resource extraction is the emergence of an unprecedented form of governmentality that consists in *managing the multitudes*. The extraction and looting of natural resources by war machines goes hand in hand with brutal attempts to immobilize and spatially fix whole categories of people or, paradoxically, to free them as a way of forcing them to scatter over broad areas no longer contained by the boundaries of a territorial state. As a political category, populations are then disaggregated into rebels, child soldiers, victims, or refugees, or civilians who are incapacitated through mutilation or simply massacred on the model of ancient sacrifices, while, after enduring a horrific exodus, the “survivors” get confined in camps and zones of exception.⁶⁸

This form of governmentality is different from colonial *commandement*.⁶⁹ Techniques of exercising police authority and discipline, the choice between obedience and simulation that characterized the colonial and postcolonial potentate, are gradually being replaced by an alternative that is more tragic because more extreme. Technologies of destruction have be-

come more tactile, more anatomical and sensorial, in a context in which the choice is between life and death.⁷⁰ If power still depends on tight control over bodies (or on concentrating them in camps), the new technologies of destruction are less concerned with inscribing bodies within disciplinary apparatuses than with inscribing them, when the time comes, within the order of the maximal economy now represented by the “massacre.” In turn, the generalization of insecurity has deepened the societal distinction between those who bear weapons and those who do not (*the law of weapons distribution*). Increasingly, war is no longer waged between the armies of two sovereign states but between armed groups that act behind the mask of the state against armed groups that have no state but control very distinct territories, with both sides having as their main targets civilian populations that are unarmed or organized into militias. In cases where armed dissidents have not completely taken over state power, they have provoked territorial partitions and succeeded in controlling entire regions, which they administer on the model of fiefdoms, especially if they contain mineral deposits.⁷¹

The methods of killing do not vary greatly. In the case of massacres in particular, lifeless bodies are quickly reduced to the status of simple skeletons. Their morphology henceforth inscribes them in the register of undifferentiated generality: simple relics of an unburied pain; empty, meaningless corporealities; strange deposits plunged into cruel stupor. In the case of the Rwandan genocide—in which a number of skeletons were, when not exhumed, kept in a visible state—what is striking is the tension between, on the one hand, the petrification of the bones and their strange coolness and, on the other, their stubborn will to mean, to signify something.

In these impassive bits of bone, there seems to be no *ataraxia*: nothing but the illusory rejection of a death that has already occurred. In other cases, in which physical amputation replaces immediate death, the severing of limbs paves the way for the deployment of techniques of incision, ablation, and excision that also have bones as their target. This demiurgic surgery leaves traces that persist for a long time, in the form of human shapes that are alive, to be sure, but whose bodily integrity has been replaced by pieces, fragments, folds, where even immense wounds do not easily heal. Their function is to hold forever the morbid spectacle of such severing before the eyes of the victim and the eyes of those around him.

Of Acts and Metal

Let us return to the example of Palestine, where we see a confrontation occurring between two apparently irreconcilable logics: the *logic of martyrdom* and the *logic of survival*. In examining these logics, I would like to reflect on the twin issues of death and terror, on the one hand, and terror and freedom, on the other.

In the confrontation between these two logics, terror and death do not stand on opposite sides from one another. Terror and death are the core of both logics. As Elias Canetti reminds us, the survivor is the one who, having stood in the path of death, having known many deaths and having been amid the fallen, is still alive. Or, more precisely, the survivor is the one who has taken on a whole pack of enemies and managed not only to escape alive but to kill his attackers. This is why killing is the lowest form of survival. Canetti points out that in the logic of survival, “each man is the enemy of every other.” Even more radically, in the logic of survival the horror experienced upon seeing death turns into the satisfaction that the dead person is another. It is the death of the Other, the Other’s physical presence as a corpse, that makes the survivor feel unique. And each enemy killed makes the survivor feel more secure.⁷²

The logic of martyrdom proceeds along different lines. It is epitomized by the figure of the “suicide bomber,” which itself raises a number of questions: What intrinsic difference is there between killing with a missile helicopter or a tank and killing with one’s own body? Does the distinction between the weapons used to inflict death prevent the establishment of a system of general exchange between the manner of killing and that of dying?

The suicide bomber wears no ordinary soldier’s uniform and brandishes no weapon. The candidate for martyrdom hunts down the targets; the enemy is a prey for whom a trap is set. Significant in this respect is the location of the ambush laid: the bus stop, the café, the discotheque, the marketplace, the checkpoint, the road—in sum, spaces of everyday life.

On top of the location of the ambush is the trap of the body. Candidates for martyrdom transform their bodies into a mask that hides the soon-to-be-detonated weapon. While a tank or a missile is clearly visible, the weapon carried in the shape of the body is invisible. Thus concealed, it forms part of the body. It is so intimately part of the body that at the time

of detonation it annihilates the bearer's own body, which takes the bodies of others with it, when it does not reduce them to pieces. The body does not simply conceal a weapon. The body is transformed into a weapon, not in a metaphorical sense but in the truly ballistic sense.

In this instance, my death goes hand in hand with the Other's death. Homicide and suicide are accomplished in the same act. Resistance and self-destruction are largely synonymous. To mete out death is therefore to reduce the Other and oneself to the status of pieces of inert flesh, scattered about everywhere, and pieced back together with difficulty before the burial. In this case, war is the body-on-body war (*guerre au corps-à-corps*). To kill, one must get as close as possible to the body of the enemy. To detonate the bomb necessitates resolving the question of distance through the work of proximity and concealment.

How are we to interpret this manner of spilling blood, in which the death is not simply *my own* but always goes hand in hand with the other's death?⁷³ How does it differ from the death inflicted by a tank or a missile, in a context in which the cost of my survival is calculated in terms of my capacity and readiness to kill someone else? In the logic of "martyrdom," the will to die is fused with the will to take the enemy down with you, that is, to slam shut the door on the possibility of life for everyone. This logic seems contrary to another one, which consists in wishing to impose death on others while preserving one's own life. Canetti describes this moment of survival as a moment of power. In such a case, triumph develops precisely from the possibility of being there when the others (in this case the enemy) are no longer there. Such is the logic of heroism as classically understood: executing others while holding one's own death at a distance.

A new semiosis of killing emerges in the logic of martyrdom. It is not necessarily based on a relationship between form and matter. As I have already indicated, the body here becomes the martyr's uniform. But the body as such is not only an object to protect against danger and death. The body in itself has neither power nor value. Rather its power and value result from a process of abstraction based on the desire for eternity. In that sense, the martyr, having established a moment of supremacy in which the subject overcomes his own mortality, can be seen as laboring under the sign of the future. In other words, in death the future is collapsed into the present.

In its desire for eternity, the besieged body passes through two stages. First, it is transformed into a mere thing, mere malleable matter. Second,

the manner in which it is put to death — suicide — affords it its ultimate signification. The body's matter, or again the matter which the body is, is invested with properties that can be deduced not from its character as a thing but from a transcendental *nomos* outside it. The besieged body becomes a piece of metal whose function is to bring eternal life into being through sacrifice. The body duplicates itself and, in death, literally and metaphorically escapes the state of siege and occupation.

Let me explore, in conclusion, the relation between terror, freedom, and sacrifice. Heidegger argues that the human's "being toward death" is the decisive condition of all true human freedom.⁷⁴ In other words, one is free to live one's own life only because one is free to die one's own death. Whereas Heidegger grants an existential status to being-toward-death and considers it an event of freedom, Bataille suggests that "sacrifice in reality reveals nothing." It is not simply the absolute manifestation of negativity. It is also a comedy. For Bataille, death reveals the human subject's animal side, which he refers to, moreover, as the subject's "natural being." He adds, "For man to reveal himself in the end, he has to die, but he will have to do so while alive — by looking at himself ceasing to exist." In other words, the human subject has to be fully alive at the very moment of dying, to be aware of his own death, to live with the impression of actually dying. Death itself must become self-awareness at the very time that it does away with the conscious being. "In a sense, this is what happens (what at least is on the point of taking place, or what takes place in an elusive, fugitive manner), by means of a subterfuge in the sacrifice. In the sacrifice, the sacrificed identifies himself with the animal on the point of death. Thus he dies seeing himself die, and even, in some sense, through his own will, at one with the weapon of sacrifice. But this is play!" And for Bataille, play is more or less the means by which the human subject "voluntarily tricks himself."⁷⁵

How does the notion of play and trickery relate to the suicide bomber? In the case of the suicide bomber, the sacrifice doubtless consists in the spectacular putting of oneself to death, in becoming one's own victim (self-sacrifice). Self-sacrificers proceed to take power over their death by approaching it head-on. This power may be derived from the belief that destroying one's own body does not affect the continuity of being. The idea is that being exists outside us. Here self-sacrifice consists in the removal of a twofold prohibition: that of self-immolation (suicide) and that of mur-

der. Unlike primitive sacrifices, however, there is no animal to serve as a substitute victim. Death here achieves the character of a transgression. But unlike crucifixion, it has no expiatory dimension. It is not related to the Hegelian paradigms of prestige or recognition. Indeed, a dead person cannot recognize his killer, who is also dead. Does this imply that death occurs here as pure annihilation and nothingness, excess and scandal?

Whether read from the perspective of slavery or that of colonial occupation, death and freedom are irrevocably interwoven. As we have seen, terror is a defining feature of both slave and late modern colonial regimes. Both regimes are also specific instances and experiences of unfreedom. To live under late-modern occupation is to experience a permanent condition of “being in pain”: fortified structures, military posts, and roadblocks everywhere; buildings that bring back painful memories of humiliation, interrogations, and beatings; curfews that imprison hundreds of thousands in their cramped homes every night from dusk to dawn; soldiers patrolling the unlit streets, frightened by their own shadows; children blinded by rubber bullets; parents shamed and beaten in front of their families; soldiers urinating on fences, shooting at rooftop water tanks just for kicks, chanting loud and offensive slogans, pounding on fragile tin doors to frighten children, confiscating papers, or dumping garbage in the middle of residential neighborhoods; border guards kicking over vegetable stands or closing borders at whim; bones broken; shootings and fatalities—a certain kind of madness.⁷⁶

In such circumstances, the discipline of life and the necessities of hardship (trial by death) are marked by excess. What connects terror, death, and freedom is an *ecstatic* notion of temporality and politics. The future, here, can be authentically anticipated, but not in the present. The present itself is but a moment of vision—a vision of the freedom not yet come. Death in the present is the mediator of redemption. Far from being an encounter with a limit, boundary, or barrier, it is experienced as “a release from terror and bondage.”⁷⁷ As Gilroy notes, this preference for death over continued servitude is a commentary on the nature of freedom itself (or the lack thereof). If this lack is the very nature of what it means for the slave or the colonized to exist, the same lack is also precisely the way in which he takes account of his mortality. Referring to the practice of individual or mass suicide by slaves cornered by slave catchers, Gilroy suggests that death, in this case, can be represented as agency. For death is precisely that

from and over which I have power. But it is also the space where freedom and negation operate.

In this chapter, I have argued that contemporary forms of subjugating life to the power of death (necropolitics) are deeply reconfiguring the relations between resistance, sacrifice, and terror. I have demonstrated that the notion of biopower is insufficient to account for contemporary forms of the subjugation of life to the power of death. Moreover, I have put forward the notion of necropolitics, or necropower, to account for the various ways in which, in our contemporary world, weapons are deployed in the interest of maximally destroying persons and creating *death-worlds*, that is, new and unique forms of social existence in which vast populations are subjected to living conditions that confer upon them the status of the *living dead*. I have also outlined some of the repressed topographies of cruelty (the plantation and the colony in particular) and suggested that today's form of necropower blurs the lines between resistance and suicide, sacrifice and redemption, martyrdom and freedom.